

		Plaintiff, Tony I. Chao's motion for a judgment declaring defendant Joseph I. Chao deceased, a default interlocutory judgment for partition, and appointment of referee for the condominium located at 12635 Main St, Unit 201, Garden Grove, CA, 92840, Assessor's Parcel Number 930-534-26 is DENIED. <u>Presumption of Death</u> The statements in plaintiff's declaration and stipulation are conclusory and do not satisfy the first and second elements of the presumption. (See <i>Conservatorship of Geiger</i> (1992) 3 Cal.App.4th 127, 135.) While the motion states plaintiff and defendants are brothers, neither plaintiff's declaration nor the stipulation states they are brothers. Even if they did, neither document provides foundational facts establishing either plaintiff or Jeremy are persons who would likely see or hear from Joseph. Neither document provides facts establishing plaintiff and/or Jeremy were in regular contact with Joseph prior to February 7, 2007. Further, neither document explains the steps that were taken, or by whom, to conduct a diligent search/inquiry about Joseph's whereabouts over the last 17 years. <u>Partition</u> This statutory scheme envisions an interlocutory judgment of partition, and that must come as the result of a trial or summary judgment. (See Code Civ. Proc., § 872.710, subd. (a) ["At the trial, the court shall determine whether the plaintiff has the right to partition."] Neither has occurred. Plaintiff to give notice.
3	Manlapeg vs. UCNC, Inc. 30-2024-01411013-CU-WT-CJC	Defendant's Motion to Stay and Compel Arbitration The Motion to Compel Arbitration brought by Defendant UVNV, Inc. dba Ultra Mobile is GRANTED. There is no dispute Plaintiff executed an "Agreement to Mediate and Arbitrate" with Defendant, wherein Plaintiff agreed to arbitrate "any dispute or controversy arising out of or relating to Employee's hire, employment, remuneration, separation or termination from the Company...." (§9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶3, ¶5; See also ¶3-¶4 and ¶9 of Manlapeg Declaration.) Plaintiff does not dispute the authenticity of her signature and, instead, confirms she signed the agreement. (§9 of Manlapeg Declaration.) There is no dispute the arbitration agreement applies to the claims herein.

		In opposing the motion, Plaintiff asserts the agreement is unconscionable. The unconscionability doctrine applies to agreements governed by the FAA, as well as the CAA. (See <i>Sonic-Calabasas A, Inc. v. Moreno</i> (2013) 57 Cal.4th 1109, 1145.) Unconscionability is a defense to enforcement of an arbitration agreement and Plaintiff bears the burden of proof thereon. (<i>Iyere v. Wise Auto Group</i> (2023) 87 Cal.App.5th 747, 754-755.) "[T]he doctrine of unconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (<i>Murrey v. Superior Court of Orange County</i> (2023) 87 Cal.App.5th 1223, 1237.) "Both procedural and substantive unconscionability must be present before a court can refuse to enforce an arbitration provision based on unconscionability..." (<i>Navas v. Fresh Venture Foods, LLC</i> (2022) 85 Cal.App.5th 626, 632.) Plaintiff asserts the agreement is procedurally unconscionable, because it was adhesive. (Opposition: 9:17-11:4.) "An adhesive contract is defined as 'a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.' " (<i>Gutierrez v. Autowest, Inc.</i> (2003) 114 Cal.App.4th 77, 88.) To establish the agreement is adhesive, Plaintiff declares, "there was no way for me to edit or modify any of the documents." (§4 of Manlapeg Declaration.) Plaintiff refers to the agreement as a "boilerplate contract that Ultra imposed on me on a 'take-it-or-leave-it' basis" and indicates she was not offered the opportunity to negotiate. (§6 of Manlapeg Declaration.) While it is true adhesive contracts create a "modest degree of procedural unconscionability" (<i>Nguyen v. Applied Medical Resources Corp.</i> (2016) 4 Cal.App.5th 232, 248) and true that Plaintiff's declaration describes circumstances which generally qualify as adhesive, the agreement allowed Plaintiff to opt-out of arbitration. The agreement states: "If resolution of the dispute is not achieved through mediation, the parties agree to settle their dispute by binding arbitration under the Federal Arbitration Act...unless the Employee notifies the Company in writing within 30 days of signing this Agreement that Employee prefers not to be covered by the benefits of Arbitration." (§9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at §5.) Additionally, the agreement states: "No employee will be retaliated or discriminated against for refusing to consent to this Agreement. Signing this Agreement is voluntary." (§9 of
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Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶13.)

To address the above, Plaintiff states, "I read the Agreement and did not understand that I had the right to revoke it. Rather, I understood at the time that I could not start work for Ultra if I did not sign the Agreement." (¶5 of Manlapeg Declaration.)

In the absence of fraud, overreaching or excusable neglect, one who signs an instrument may not avoid the impact of its terms on the ground he failed to read the instrument before signing it. (*Roldan v. Callahan & Blaine* (2013) 219 Cal.App.4th 87, 93.)

"Moreover, courts must also presume parties understood the agreements they sign, and that the parties intended whatever the agreement objectively provides, whether or not they subjectively did. Where the parties have reduced their agreement to writing, their mutual intention is to be determined, whenever possible, from the language of the writing alone. The parties' expressed objective intent, not their unexpressed subjective intent, governs." (*Ibid.* (cleaned up).)

It is undisputed Plaintiff did not opt out of arbitration. (¶10 of Midigaspe Declaration and ¶5 of Manlapeg Declaration.) The plain language of the agreement provided Plaintiff with the ability to opt out of arbitration and Plaintiff identifies no language or conduct by Defendant, which supports her subjective understanding arbitration was mandatory. Consequently, the agreement was not adhesive.

Next, Plaintiff assert procedural unconscionability exists, based on "surprise." (Opposition: 11:5-11.) "Unfair surprise results from misleading bargaining conduct or other circumstances indicating that a party's consent was not an informed choice." (*Penilla v. Westmont Corp.* (2016) 3 Cal.App.5th 205, 214.) "Unfair 'surprise' covers a variety of deceptive practices and tactics, including hiding a clause in a mass of fine print or phrasing a clause in language that is incomprehensible to a layperson." (*Id.* at p. 216.)

Plaintiff asserts she was unfairly surprised, as the agreement "does not clearly explain that Christine was giving up the right to a jury trial." (Opposition: 11:13-14.) However, Plaintiff acknowledges the agreement states, immediately above the signature line:

THE PARTIES UNDERSTAND AND AGREE THAT, BY SIGNING THIS AGREEMENT, THEY ARE ELECTING TO RESOLVE THE DISPUTES, CLAIMS AND/OR CONTROVERSIES TO WHICH IT APPLIES THROUGH MEDIATION AND ARBITRATION AND ARE WAIVING THEIR RIGHT TO A JUDICIAL FORUM.

(¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶15.) Plaintiff argues the phrase “judicial forum” is “confusing legalese,” however, the language clearly indicates disputes will be resolved via arbitration.

Plaintiff argues she was surprised to discover that “Ultra retained for itself the right to sue me in a court of its choosing” and “Ultra refused to negotiate at mediation” (¶7-¶8 of Manlapeg Declaration); however, these arguments are unconnected to any language within the agreement. In contrast to Plaintiff’s subjective understanding, the agreement provides for mediation and arbitration of “any dispute or controversy between Employee and the Company....” (¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶3.)

At most, the agreement states: “In the event the parties proceed to mediation and/or arbitration, either party hereto may apply to a California court for any provisional remedy pursuant to California Code of Civil Procedure Section 1281.8, including a temporary restraining order or preliminary injunction.” (¶9 of Midigaspe Declaration and Exhibit A thereto, Arbitration Agreement at ¶6.)

To the extent Plaintiff is referring to the above language, this provision is not unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1246-1248 [“...the provisional relief clause does no more than recite the procedural protections already secured by section 1281.8(b)...regardless of whether Forever 21 is, practically speaking, more likely to seek provisional remedies than its employees, simply reciting the parties’ rights under section 1281.8 does not place Baltazar at an unfair disadvantage.”])

Plaintiff has not met her burden of establishing procedural unconscionability.

Defendant’s request for attorneys’ fees is DENIED. Defendant asserts “[t]he filing of this lawsuit, and Plaintiff’s subsequent refusal to dismiss the lawsuit, is frivolous, groundless, unreasonable and malicious.” (Motion: 18:11-12.) Thereafter, citing Government Code section 12965, subdivision (c)(6), Defendant requests attorneys’ fees. (Motion: 18:19-23.)

Defendant has not prevailed on Plaintiff’s FEHA claims and there has been no showing Plaintiff’s FEHA claims are “frivolous, unreasonable or groundless.” Moreover, Defendant cites no authority permitting an award under this provision, in the context of a motion to compel arbitration.

The action is STAYED pending completion arbitration. (Code Civ. Pro., § 1281.4; 9 U.S.C. § 3.)

		The court schedules an Arbitration Review Hearing for 12/4/2025 at 1:30 PM. All parties are ORDERED to file a Joint Status Report 5 days prior to the hearing. Defendant to give notice.
4	Mourshaki vs. California Fair Plan 30-2023-01311171-CU-IC-CJC	Defendant California Fair Plan Association's Motion to Compel Appearance of Plaintiffs at Deposition and Request for Monetary Sanctions Defendant California FAIR Plan Association's motion to compel plaintiffs Fatameh Mourshaki and Abraham Nasiri to appear for their depositions is GRANTED. On 9-19-24, Defendant electronically served Plaintiffs with amended notices of deposition setting their depositions for 10-3-24. (Moutes-Lee Decl., ¶ 11-13, Exs. E-F.) Electronic service on Plaintiffs who were not represented by counsel until 11-4-24 was improper. (ROA Nos. 183, 184.) Electronic service is not permitted on a self-represented party absent their affirmative consent, of which there is no evidence here. (Cal. Rules of Court, rules 2.251(c)(3)(B), 2.253(b)(2), (b)(3).) However, on 9-23-24, Defendant's counsel re-served these amended notices of deposition on Plaintiffs via mail. (Moutes-Lee Decl., ¶¶ 15-17, Exs. H-I.) Therefore, the amended notices setting Plaintiffs depositions for 10-3-24 were properly served on Plaintiffs. Plaintiffs failed to appear for their depositions on 10-3-24 and Defendant's counsel's office took certificates of non-appearance. (Moutes-Lee Decl., ¶¶ 21-22, Ex. L.) Since the filing of the Motion, Nasiri has agreed to appear for his deposition which is scheduled for 12-9-24. If Nasiri appeared for his deposition on 12-9-24, the Motion is MOOT as to Nasiri. If Nasiri failed to appear for his deposition on 12-9-24, Nasiri is ORDERED to appear for his deposition within 7 days. Mourshaki has refused to appear unless she is allowed to appear remotely. Although Mourshaki claims to be unable to travel to defense counsel's office because of health issues, she has not provided any medical documentation corroborating her claim. Mourshaki is ORDERED to appear for her deposition within 7 days. The parties are ORDERED to meet and confer within 24 hours to agree on the date, time, and place for the depositions. The court ORDERS Plaintiffs to pay \$2,821.25 in sanctions to Defendant within 20 days. Moving party to give notice.